

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERIC CHANG LAGANDAON,

Petitioner

VS.

MICHELLE MARGARET LAGANDAON,

Respondent

) Case Number: FDI-14-782621

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT,
AND REIMBURSEMENT OF CHILD SUPPORT OVERPAYMENTS

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom video at 9:00 AM on Tuesday, 9/15/2026 in Dept. 404 for the Court to make orders regarding any child and spousal support overpayments for the period 5/1/2026 – 9/15/2026. The parties shall be prepared to inform the Court what amount in child and spousal support payments Mother may have paid to Father between 5/1/2026 – 9/15/2026.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Eric Lagandaon (Father) and Respondent Michelle Green (formerly Lagandaon) (Mother) married on 7/15/2003 and separated on 10/22/2014, for a marriage of 11 years and 3 months. The parties have three children, Mya (DOB: 10/18/2003, age 22), Mason (DOB: 12/19/2008, age 17), and Myles (DOB: 6/12/2012, age 14). Both parties are self-represented.
- 2) On 4/17/2015, a Dissolution Judgment was entered which provides in relevant part:
 - a. The parties share custody of the children according to a 2-2-5 schedule.

- b. Mother shall pay Father guideline child support of \$1,442 per month, which is based on Mother's income of \$11,400 per month and Father's income of \$3,500 per month.
- c. The parties shall share equally uninsured medical expenses and the costs of education and special needs of the children.
- d. The parties stipulated to Mother paying Father \$1,102 per month in guideline spousal support. The Judgment provides, "Court retains jurisdiction to modify or terminate spousal support." The Judgment also provides: "It is the goal of this State that each party must make reasonable good faith efforts to become self-supporting as provided for in Family Code section 4320. The failure to make reasonable good faith efforts may be one of the factors considered by the Court as a basis for modifying or terminating support."
- 3) Now on for hearing is Mother's Request for Order filed 5/1/2026 asking to modify child support; terminate spousal support for Father; and reimburse Mother for child support overpayments for their oldest child Mya. Mother states she continued to pay child support for Mya several years past the date Mya turned 18 on who turned 18 on 10/18/2021. Mother states that Father's income has "tripled" in the past 12 years and he no longer requires support. Mother also notes that she has been paying support to Father for nearly 12 years, which is longer than the length of the parties' marriage.
- 4) On 5/1/2026, Mother filed an Income and Expense Declaration. Mother states that she is 50 years old and is the VP of HR for Conga. Mother states that she earns \$25,000 per month. Mother states that her actual monthly expenses total \$20,000 per month. Mother did not attach paystubs to her Income and Expense Declaration.
- 5) On 6/17/2026, Mother filed a declaration stating that she has paid support to Father since 2014. Mother states that their eldest child Mya reached the age of majority in October 2021, but Mother continued paying child support for Mya several years past that date. Mother states that Mason and Myles have begun living with her significantly more than 50% of the time. Mother attached as an exhibit a custody calendar for the period June 2025 – June 2026, which shows that during this period Mason was in Father's custody for 31 out of 395 days (8% of the time) and Myles was in Father's custody for 83 out of 395 days (21% of the time). Mother states that Father's current income is substantially higher than it was when the Judgment was entered. Mother states that

1 Father continues to live in the same family-owned apartment he occupied during their marriage.
2 Mother states that when she lived in that apartment, the rent was approximately \$500 per month.
3 Mother also states that the current support order does not reflect the financial dynamic of the
4 parties' marriage. Mother states that during marriage, Father was the primary earner, but during
5 the final two years of marriage, Father operated a restaurant and Mother's income exceeded
6 Father's. Mother also states that during their marriage, Father verbally, emotionally, financially,
7 and physically abused her. Mother states that Father lied to her about money being directed to
8 savings accounts, smeared feces in her mouth and across her face, headbutted Mother in the
9 mouth, and told their younger child to urinate in her purse. Mother states that she did not return to
10 Court sooner because she wanted to minimize contact and reduce direct conflict with Father and
11 because Father threatened to quit his job.

12 6) On 7/17/2026, Mother filed another declaration to which she attached a Spousal Support
13 Declaration Attachment (FL-157).

14 7) On 8/25/2026, Father filed a Responsive Declaration. Father states that it is not true that Mason
15 and Myles have been in Mother's care for more than 50% of the time (however, the Court notes
16 that Father did not address Mother's exhibit which shows the days in which Mason and Myles
17 were in her care between June 2025 and June 2026). Father states that his income was \$3,500 in
18 April 2015 (when the Judgment was entered) and his income is now \$8,000. Father states his rent
19 is currently \$1,769 per month. Father asks the Court to maintain the current spousal support
20 order. Father also asks the Court to maintain the current child support orders, but agrees to
21 reimburse Mother for overpayments for Mya. Father attached to his declaration a Spousal Support
22 Declaration Attachment (FL-157).

23 8) On 8/31/2026, Father filed an Income and Expense Declaration. Father states that he is 51 years
24 old and works 40 hours per week as a case worker for Genentech. The paystubs attached to
25 Father's Income and Expense Declaration show that Father regularly earns 40 hours x \$49.91 per
26 hour = \$1,996.40 per week, which averages out to \$8,651 per month. Father's paystubs also
27 show that he earned \$87,590 in year-to-date total income as of 6/14/2026 (including bonuses,
28 overtime, and stock), which averages out to approximately \$15,925 per month. Father states that
29 his monthly expenses total \$8,169.

1 9) On 9/9/2026, Mother filed a declaration. Mother attached a custody calendar for the period
2 8/1/2026 – 9/8/2026 which shows that Mason was in Mother’s care 80% of the time during this
3 period and Myles was in Mother’s care 72% of the time during this period. Mother states that two
4 years ago, the parties agreed that Mason and Myles could choose where they stay and they have
5 chosen to stay the vast majority of time with Mother. Mother states that the residence where
6 Father resides has been owned by Father’s family since the 1970s, there is no mortgage on the
7 home, and the property taxes owed are \$1,300 per year. Mother asks the Court to require
8 documentation of a lease or a declaration from the property owner regarding Father’s claimed
9 rent figure. Mother also asks, for the first time, that Father reimburse her \$20,500 which
10 represents half of Mya’s college housing costs for the years 2021 – 2024.

11 **B. Findings and Order**

- 12 1) Under Family Code section 3901, the Court finds that Mother’s duty to pay child support for Mya
13 ended when Mya turned 18 on 10/18/2021, not in May 2021 when she graduated from high
14 school. Mother therefore overpaid child support for Mya between November 2021 and March
15 2026, a period of 53 months, in the amount of $\$301 \times 53 = \$15,953$. Effective 10/15/2026, Father
16 shall pay to Mother \$1,329 per month (in addition to his monthly child support obligation) for a
17 period of 12 months to repay the child support overpayments for Mya.
- 18 2) Although the Judgment requires the parties to share equally “education” costs for the children,
19 there is no language in the Judgment which extends this requirement past the children’s age of
20 majority. Therefore, Mother’s request that Father reimburse her \$20,500 for half of Mya’s college
21 housing costs is denied.
- 22 3) Mother’s request that the Court order Father to provide documentation of a lease or a declaration
23 from the property owner regarding Father’s claimed rent figure is denied. Mother may conduct
24 discovery.
- 25 4) The Court finds that Mason is in Mother’s care 80% of the time and that Myles is in Mother’s
26 care 70% of the time. The Court also finds that both parties’ incomes have significantly increased
27 since the prior child support order was made. The Court finds these are material changes in
28 circumstance warranting a modification of child support.
- 29

- 1 5) Effective 5/1/2026 (the date Mother filed her Request for Order), in accordance with the XSpouse
2 calculation attached hereto and incorporated herein, Father shall pay child support to Mother in
3 the amount of \$111 per month.
- 4 6) As neither party has requested a Smith / Ostler child support order, the Court will not enter one at
5 this time.
- 6 7) The XSpouse calculation shows that after Father pays Mother \$111 per month in child support,
7 Father will have 26% of the parties' combined net spendable income and Mother will have 74%
8 of the parties' combined net spendable income. However, because Father receives significant
9 compensation in addition to his base pay, and because the Court is not making a Smith / Ostler
10 order at this time, the Court does not find good cause to modify the child support add-on orders
11 set forth in the Judgment. The parties shall continue to share equally all childcare costs related to
12 employment or reasonably necessary job training; all uninsured medical expenses for Mason and
13 Myles; and costs related to education or special needs of Mason and Myles.
- 14 8) Based on the findings under Family Code section 4320 set forth below, in particular that Father is
15 presently able to meet his needs, Father is able maintain the marital standard of living without
16 spousal support from Mother, and Father has received spousal support for nearly the entire
17 duration of the marriage, the Court finds good cause to terminate its jurisdiction to award spousal
18 support to Father effective 5/1/2026 (the date Mother filed her Request for Order).
- 19 9) The Court makes the following findings under Family Code section 4320.
- 20 a. The extent to which the earning capacity of each party is sufficient to maintain the
21 standard of living established during the marriage, taking into account all of the
22 following: (1) The marketable skills of the supported party; the job market for those
23 skills; the time and expenses required for the supported party to acquire the appropriate
24 education or training to develop those skills; and the possible need for retraining or
25 education to acquire other, more marketable skills or employment. (2) The extent to
26 which the supported party's present or future earning capacity is impaired by periods of
27 unemployment that were incurred during the marriage to permit the supported party to
28 devote time to domestic duties.
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1 i. Mother states that during marriage the parties earned \$80,000 - \$130,000
2 annually combined. Father states that during marriage the parties earned
3 \$160,000 - \$180,000 annually combined. Father is currently earning \$8,651 in
4 gross per month, which averages out to \$103,812 per year. Father's 6/14/2026
5 paystub shows that he earns significant compensation in addition to his base pay.
6 As of 6/14/2026, Father's has earned on average \$15,925 per month in total
7 compensation. Father is also living in the same apartment the parties lived in
8 during marriage. The only other individuals who live with Father are Mason and
9 Myles. The Court finds that Father is able to fully support himself at the marital
10 standard of living.

11 b. The extent to which the supported party contributed to the attainment of an education,
12 training, a career position, or a license by the supporting party.

13 i. Father states Mother earned her Masters in HR during marriage, during which
14 time Father watched the children while she completed her schoolwork. Mother
15 states she paid for her degree entirely using inheritance money from her mother.

16 c. The ability of the supporting party to pay spousal support, taking into account the
17 supporting party's earning capacity, earned and unearned income, assets, and standard of
18 living.

19 i. Mother earns \$300,000 annually. She lives with her current husband who earns
20 \$10,800 per month. Mason and Myles live with Mother the majority of the time.
21 The parties' daughter Mya (age 22) is also living with Mother fulltime. A fourth
22 child also lives with Mother and her new husband (presumably this child is either
23 her new husband's child or a child Mother had with her new husband).

24 d. The needs of each party based on the standard of living established during the marriage.

25 i. Both parties are able to live at or above the marital standard of living using their
26 income alone.

27 e. The obligations and assets, including the separate property, of each party.

28 i. Neither party listed significant assets or debts in their Income and Expense
29 Declarations.

1 f. The duration of the marriage.

2 i. The parties agree they were married for a period of 11 years and 4 months.

3 Mother states she has paid support to Father for a period of almost 12 years.

4 g. The ability of the supported party to engage in gainful employment without unduly
5 interfering with the interests of dependent children in the custody of the party.

6 i. The record shows that Father is able to work 40 hours per week. The children are
7 in Mother's care the majority of the time. The minor children are also older now,
8 ages 14 and 17.

9 h. The age and health of the parties.

10 i. Father is 51 and Mother is 50. Father states that he has high blood pressure. The
11 parties agree that Mother has multiple sclerosis.

12 i. All documented evidence of any history of domestic violence, as defined in Section 6211,
13 between the parties or perpetrated by either party against either party's child, including,
14 but not limited to, consideration of: (1) A plea of nolo contendere. (2) Emotional distress
15 resulting from domestic violence perpetrated against the supported party by the
16 supporting party. (3) Any history of violence against the supporting party by the
17 supported party. (4) Issuance of a protective order after a hearing pursuant to Section
18 6340. (5) A finding by a court during the pendency of a divorce, separation, or child
19 custody proceeding, or other proceeding under Division 10 (commencing with Section
20 6200), that the spouse has committed domestic violence.

21 i. Mother has not filed a Request for Domestic Violence Restraining Order to date.
22 However, Mother states that Father verbally, emotionally, financially, and
23 physically abused her. Father did not refute these assertions.

24 j. The immediate and specific tax consequences to each party.

25 i. The Court does not find that this factor, as applied to this case, has any material
26 impact on its spousal support determination.

27 k. The balance of the hardships to each party.

28 i. The Court does not find that this factor, as applied to this case, has any material
29 impact on its spousal support determination.

1 l. The goal that the supported party shall be self-supporting within a reasonable period of
2 time. Except in the case of a marriage of long duration as described in Section 4336, a
3 “reasonable period of time” for purposes of this section generally shall be one-half the
4 length of the marriage. However, nothing in this section is intended to limit the court’s
5 discretion to order support for a greater or lesser length of time, based on any of the other
6 factors listed in this section, Section 4336, and the circumstances of the parties.

7 i. The parties agree they were married for a period of 11 years and 4 months.

8 Mother states she has paid support to Father for a period of almost 12 years. The

9 Court finds that Father has the ability to support himself at the marital standard of
10 living using his earnings alone.

11 m. The criminal conviction of an abusive spouse shall be considered in making a reduction
12 or elimination of a spousal support award in accordance with Section 4324.5 or 4325.

13 i. The Court has not been provided with any evidence of a criminal conviction of
14 either spouse.

15 n. Any other factors the court determines are just and equitable.

16 i. The Court does not find any additional factor necessary for its determination.

17 **10) The parties are ordered to appear in-person or by Zoom video at 9:00 AM on Tuesday,**
18 **9/15/2026 in Dept. 404 for the Court to make orders regarding any child and spousal**
19 **support overpayments for the period 5/1/2026 – 9/15/2026. The parties shall be prepared to**
20 **inform the Court what amount in child and spousal support payments Mother may have**
21 **paid to Father between 5/1/2026 – 9/15/2026.**
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